

9:00 7	25CV480218	Jeremy Ryan vs Apple Inc.	See below
9:00 8	25CV481843	Velocity Investments vs. Shaina Garcia	Case off calendar
9:00 9-10	25CV458845	Valerie Phillips vs Warren Outlet 957	OFF CALENDAR
9:01 2	24CV443177	Jake Pauer vs Santa Clara Electrical Joint Apprenticeship and Training Trust	Plaintiff's attorney moves to be relieved as counsel. Plaintiff's motion is GRANTED.
9:01			

Line 7

Calendar Line 7

Case Name: *Ryan v. Apple Inc.*

Case No.: 25CV480218

Defendant Apple Inc. (“Defendant” or “Apple”) demurs to the first amended complaint’s (“FAC”) first cause of action for false advertising in violation of Business and Professions Code section 17500 and second cause of action for unfair business practices in violation of Business and Professions Code section 17200.

“[T]o state a claim under either the UCL or the false advertising law, based on false advertising or promotional practices, ‘it is necessary only to show that ‘members of the public are likely to be deceived.’” (*Bernardo v. Planned Parenthood Federation of America* (2004) 115 Cal.App.4th 322, 356; see also *Lavie v. Procter & Gamble Co.* (2003) 105 Cal.App.4th 496, 508 (stating that “[l]ikely to deceive’ implies more than a mere possibility that the advertisement might conceivably be misunderstood by some few consumers viewing it in an unreasonable manner... [r]ather, the phrase indicates that the ad is such that it is probable that a